

TENTATIVE RULING

UniFirst Corporation
v.
Peninsula Tire Services, Inc.
26CV001816

Motion on Petition to Confirm Contractual Arbitration Award

Hearing Date: August 14, 2026

PARTIES TO APPEAR on Plaintiff UniFirst Corporation's ("Plaintiff") motion to confirm its arbitration award entered against Defendant Peninsula Tire Services, Inc. ("Defendant"). Specifically, Plaintiff shall address whether it properly served Defendant with the Petition to Confirm the Contractual Arbitration Award ("Petition").

Any party involved in an arbitration award can petition the court to confirm, correct, or vacate it. [Code Civ. Proc. § 1285.] "If a petition or response under this chapter is **duly served and filed**, the court **shall confirm** the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." [Code Civ. Proc. § 1286 (emphasis added).] A petition to confirm a binding arbitration must name all parties to the arbitration as respondents and may include other parties affected by the award. [Code Civ. Proc. § 1285.] The petition should: (1) detail the arbitration agreement or attach a copy unless the petitioner disputes its existence; (2) identify the arbitrator; and (3) include or attach the award and the arbitrator's written opinion. [Code Civ. Proc. § 1285.4, subs. (a)-(c).] "The allegations of a petition are deemed to be admitted by a respondent duly served therewith unless a response is duly served and filed." [Code Civ. Proc. § 1290.]

The most recent iteration of the motion was filed on June 12, 2026, but Defendant has not yet responded or sought to vacate the award. Generally, the Court would accept the Petition's allegations as true and grant the motion, especially since the Petition was filed and served over four months ago and judicial review of arbitration awards is very limited. [*Reed v. Mutual Service Corp.* (2003) 106 Cal.App.4th 1359, 1365; *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 10; Code Civ. Proc. §§ 1286.4, 1286.8, and 1288.]

However, **PARTIES TO APPEAR** to discuss whether the Petition was properly served on Defendant. [Code Civ. Proc. § 1286.] The address Plaintiff used to mail the motion to Defendant on June 12, 2026, is 3011 Ellen Court in Marina, California. However, Defendant's address identified in the Proof of Service related to the Petition, the Customer Service Agreement, and the Final Award of Arbitrator is 1299 Del Monte Avenue in Monterey, California. Because the service address in the motion (3011 Ellen Court, Marina) differs from the address in the Petition's Proof of Service, Customer Service Agreement, and Award of Arbitrator (1299 Del Monte Avenue, Monterey), the Court cannot rule on Plaintiff's motion until the Plaintiff confirms proper service of the Petition on the Defendant. [Code Civ. Proc. §§ 1286, 1290.]